

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION REQUESTING THAT THE WYOMING STATE LEGISLATURE CONSIDER LEGISLATION AUTHORIZING THE SALE OF ALCOHOLIC BEVERAGES WITH AN ALCOHOL BY VOLUME OF 5% AT GROCERY STORES AND CONVENIENCE STORES THROUGHOUT THE STATE."

WHEREAS, the Governing Body recognizes the need for improving the convenience of life for existing state residents, prospective new residents, and visitors alike;

WHEREAS, one avenue for making daily life more efficient and convenient is to allow Wyoming residents and visitors to this great state to purchase alcoholic beverages with an alcohol by volume (ABV) of 5% at grocery stores and convenience stores, which stores can be easier to locate and more convenient to patronize than retail liquor stores;

WHEREAS the Governing Body believes that the State's current statutory structure governing the sale of alcoholic beverages creates confusion on the part of Wyoming residents who cannot comprehend why alcoholic beverages may be sold at certain grocery stores and convenience stores in the state, but not at all of them;

WHEREAS, the Governing Body further believes that the current statutory structure governing the sale of alcoholic beverages is stifling economic growth in both larger and smaller communities because the number of liquor licenses that may be issued is tied to arbitrary population formulas specified by state statute;

WHEREAS the Governing Body recognizes the value and necessity of local control regarding the issuance of liquor licenses by cities and towns, which are also charged with funding and administering emergency services and law enforcement;

WHEREAS the Governing Body recognizes and appreciates the entrepreneurial spirit of the businesses who apply to the City of Cheyenne seeking a liquor license. However, the current statutory structure illogically constricts alcoholic beverage sales, placing governing bodies across the state in a precarious situation of picking "winners and losers" amongst a variety of qualified candidates. The Governing Body believes this is detrimental and antithetical to a free market economy; and

WHEREAS the Governing Body has requested that the Wyoming Association of Municipalities draft a resolution on this topic similar to the one herein, which resolution, among other things, would also express support for grocery stores and convenience stores being able to sell alcoholic beverages with an ABV of 5%.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body hereby requests that the Wyoming State Legislature, and the appropriate legislative committees, review, consider, and adopt modifications to the current statutory structure governing the sale of alcoholic beverages in the state's city and

towns to allow alcoholic beverages with an ABV of 5% to be sold in grocery stores and convenience stores.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk